

TENTATIVE RULINGS for LAW and MOTION

June 23, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Bank of America, N.A. v. Mullen**
 Case No. CV2025-1174

Hearing Date: **June 23, 2026** **Department Fourteen** **9:00 a.m.**

Plaintiff Bank of America, N.A.'s unopposed motion to enter judgment pursuant to stipulation is **GRANTED**. (Code Civ. Proc., § 664.6; Dawson ¶¶ 2-8, Exhibit 1.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, the Court will execute the proposed order and judgment, lodged on May 8, 2026.

TENTATIVE RULING

Case: **HerbalShotz LLC et al. v. Vaidya et al.**
 Case No. CV2025-3516

Hearing Date: **June 23, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer

On the Court's own motion, cross-defendants Keerut Dhesi and Isha Dhesi's demurrer to first amended cross-complaint is **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.

Motion to strike

On the Court's own motion, defendants Aditya Vaidya, Arshdeep Khinda, Rupinder Pamma, Shivdeep Singh Bhinder, and Simran Vaidya's motion to strike punitive damages from the first amended complaint is **CONTINUED** to **July 10, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **JPMorgan Chase Bank, N.A. v. Silva**
Case No. CV2025-0957

Hearing Date: **June 23, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff JPMorgan Chase Bank, N.A.'s unopposed motion for summary adjudication is **GRANTED**. (Code Civ. Proc., § 437c, subd. (p)(1).) Plaintiff has established all required elements of its second cause of action (breach of guaranty) against defendant Edgar Silva. (*Ibid.*; *Walsh v. West Valley Mission Community College Dist.* (1998) 66 Cal.App.4th 1532, 1546-47; UMF 1-18.)

Plaintiff's request for costs is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 1032, 1033.5.) A prevailing party must file and serve the memorandum of costs within 15 days after the date of service of the notice of entry of judgment. (Cal. Rules of Court, rule 3.1700(a)(1).) As judgment has not yet been entered, plaintiff's request for costs is premature.

The case management conference set for July 7, 2026, is **VACATED**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312, or further notice is required.

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
 Case No. CV2025-0929

Hearing Date: **June 23, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff's motion to file second amended complaint

Plaintiff Nadir Malik's motion to file second amended complaint is **GRANTED**. (Code Civ. Proc., § 473, subd. (a)(1); Cal. Rules of Court, rule 3.1324.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Defendant's motion for judgment on the pleadings

Defendant Flagstar Bank, N.A.'s motion for judgment on the pleadings is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 438; *State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131, [the filing of an amended complaint moots a motion directed to a prior complaint because there is but one complaint in a civil action].)